



Appeal Decision

Site visit made on 21 August 2026

by H Whitfield BSc (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal A Ref: 6012153

Outside No. 118 Mile End Road, London E1 4UH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Ms Safia Rana-Jaswal (BT Telecommunications PLC) against the decision of the Council of the London Borough of Tower Hamlets.
 - The application Ref is PA/26/00601.
 - The development proposed is the proposed removal of an existing InLink Unit, and the deployment of a replacement Street Hub 3 unit.
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Appeal B Ref: 6012151

Outside No. 118 Mile End Road, London E1 4UH

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Ms Safia Rana-Jaswal (BT Telecommunications PLC) against the decision of the Council of the London Borough of Tower Hamlets.
 - The application Ref is PA/26/00602.
 - The advertisement proposed is the proposed removal of an existing InLink Unit, and the deployment of a replacement Street Hub 3 unit.
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Decision Appeal A

1. The appeal is allowed and planning permission is granted for the installation of a BT Street Hub 3 unit outside No. 118 Mile End Road, London E1 4UH in accordance with the terms of the application, Ref PA/26/00601 and subject to the conditions in the attached schedule.

Decision Appeal B

2. The appeal is allowed and express consent is granted for two digital 75-inch LCD display screens, one on each side of the Street Hub outside No. 118 Mile End Road, London E1 4UH in accordance with the terms of the application, Ref PA/26/00602, dated 30th March 2026. The consent is for ten years from the date of this decision and is subject to the five standard conditions set out in Schedule 2 of the 2007 Regulations and the additional conditions in the attached schedule.

Preliminary Matters

3. I have used the descriptions from the respective application forms in the banner headings above. However, in my formal decisions I have amended the descriptions to match those used by the Council on the decision notices, as these more accurately describe the proposed development and advertisement.
4. As set out above, there are two appeals on this site. They differ only in that appeal A relates to planning permission and appeal B to express advertisement consent. Both

appeals have been considered on their individual merits. However, as they raise similar issues, and to avoid duplication, they are addressed in a single decision, except where otherwise indicated.

5. In respect of Appeal B, Regulation 3(1) of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) (the Advert Regulations) makes clear that advertisements should be subject to control only in the interests of amenity and public safety. Regard does not need to be had to the development plan. Therefore, while I have taken relevant policies of the Tower Hamlets Local Plan 2031 (the THLP) and London Plan (2021) into account as material considerations, they have not been determinative.
6. The appeal site is located within the Stepney Green Conservation Area (the CA). Accordingly, in my consideration of these appeals I have been mindful of my statutory duty under Section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) which requires special regard be paid to the desirability of preserving or enhancing the character or appearance of the CA. For advertisement appeals (Appeal B) this is only relevant in so far as it relates to visual amenity.
7. The site is also proximate to Grade II listed buildings and thus in my consideration of Appeal A, I have also been mindful of my statutory duty under Section 66(1) of the Act which requires special regard be paid to the desirability of preserving the listed building or its setting or any features of special architectural or historic interest. Section 66(1) of the Act does not apply to applications for advertisement consent. Accordingly, in respect of Appeal B, the proximity of the site to listed buildings is again only relevant insofar as it relates to visual amenity.
8. During the course of the appeal a revised National Planning Policy Framework (2026) (the Framework) was published. The main parties were provided with an opportunity to comment on the implications of the revised Framework, and I have had regard to any comments received.

Main Issues

9. For Appeal A, the main issues are the effect of the proposed development on (i) the character and appearance of the area, including the significance of the CA and nearby listed buildings through development within their settings and (ii) highway and pedestrian safety.
10. For Appeal B, the main issues are the effect of the proposed advertisement on (i) the visual amenity of the area and (ii) public safety.

Reasons

Character, appearance and visual amenity, including the CA and Listed Buildings

11. The appeal site is situated along a stretch of pavement on Mile End Road, a busy main thoroughfare which is characterised at this point by a mix of commercial and residential uses, with a variety in building scale and street furniture. The footway in the vicinity of the appeal site contains various items of street furniture including street signs, lamp posts, bike stands, telephone and post boxes, bus stops with existing display screens and street trees. Collectively these features, along with various illuminated and non-illuminated signage along the street, provide a modern, commercial context which defines the character and appearance of the area.

Significance and settings

12. The Stepney Green CA Character Appraisal and Management Guidelines (2009) (the CAMG) set out that the significance of the CA derives from being an area of exceptional architectural and historic interest, mainly centred around two main through-routes, Mile End Road and Stepney Green. The main defining characteristic of Mile End Road is its large-scale width, ranging from over 20 metres at Stepney Green station, to 50 metres to the west. The CAMG states that the building lines to the north and south define the continuous corridor of the road and give it its urban quality, and that its functional importance as a transport route is an important part of its historic character. As the appeal site relates to a section of pavement in a commercial area, surrounded by various street furniture, it makes a neutral contribution to the significance of the CA as a whole.
13. The CAMG also identifies an important terrace of Grade II listed shops, 90 to 126 (even) Mile End Road¹, which lie to the south of the appeal site. These, together with the Wickhams Department Store opposite are identified as an important commercial focus to the CA. Nos 90 to 126 are an early 19th Century three-storey stock brick terrace with coped parapets and mostly commercial units at ground floor. Insofar as is relevant to these appeals, as historic buildings of pleasing architectural character, their special interest and significance derive from their architectural and historic interest and cohesive townscape value. However, notwithstanding the proximity of the appeal site to these buildings, as it relates to a modern section of pavement, it makes a neutral contribution to their settings.
14. To the north east of the appeal site is also the Grade II listed drinking fountain² within the pavement outside 99 Mile End Road. This small, polished drinking fountain forms a group with other Nos 107 to 113 (odd) and the Anchor Brewery buildings. Insofar as is relevant to these appeals, the significance of this listed fountain lies with its special architectural and historic interest. However, again, as these appeals relate to a modern section of pavement, the appeal site makes a neutral contribution to their settings.

Effect of the appeal schemes

15. As set out above, this section of Mile End Road forms a wide, tree-lined boulevard with a busy, urban character, flanked on either side by a continuous building line of predominantly retail and commercial uses at street-level. Street furniture, signage and advertising are frequent, and I observed examples of illuminated signage and powered display screens within close proximity of the appeal site and within the CA.
16. The appeal schemes propose the installation of a Street Hub, incorporating internally illuminated digital advert screens on either side. The evidence also refers to the removal of a traditional telephone kiosk outside of the cinema on Mile End Road and the removal of a cash machine approximately 35m away, on the opposite side of Mile End Road which the appellant contends are benefits of the scheme. However, these do not form part of the description of development and do not feature on the submitted Site Location Plan. Accordingly, they do not form part of the scheme before me. No mechanism to secure the removal of these structures as part of this appeal have been presented either. As such, the potential benefits of their removal have not factored into my determination of this appeal.

¹ List Entry Number: 1065114

² List Entry Number: 1357846

17. The proposed hub would be positioned at a prominent position within the footway. However, as it would be broadly in line with the avenue of trees and where most existing street furniture is clustered, it would not be an incongruous feature which would cause an intrusive addition to the street scene. Moreover, as there is not an unusual amount of street furniture in this particular location the proposal would not lead to visual clutter or an unacceptable proliferation of street furniture either, even if it was experienced in combination with any existing telephone kiosks or the abovementioned cash machine.
18. The hub would be positioned close to the edge of the footway and would be a tall, overtly modern addition to the street scene. However, given the broad width of the street and footway, and the existing tall trees which form a dominating feature of the street scene, the proposed hub would appear subservient to both the buildings which surround it, as well as the street environment within which it would be interpreted. Moreover, even when viewed against the backdrop of the listed buildings, the contemporary design would not appear out of place with its surroundings, given the variety of colours and styles of some nearby shopfronts, and more modern street furniture in the area such as the bus stop on the opposite side of the street, which are established features in the street scene.
19. Similarly, the appearance of the advertisement displays within the hub would not be unusual in this commercial context and given their size, they would not appear prominent or incongruous when viewed against the scale of the buildings in the immediate vicinity. As there are other examples of illuminated signage and the street is well-lit by streetlamps, the internal illumination of the advertisements would not appear out of place either, preserving the visual amenity of the area.
20. Overall, the hub and the integral advertisements would not disrupt the historic fabric or plan form of the CA. They would instead assimilate well within the commercial context of the ground floor shop units and their associated advertisements, which have already established a presence within the CA. Despite the surrounding historic townscape, given the already bustling and commercial nature of the location, the proposed hub and advertisement displays would not result in harm to the character or appearance of the CA, the significance of which would be preserved.
21. In respect of the Grade II listed terrace at Nos 90 to 126, the proposed hub would be located nearby on the same side of the street and would form part of the mixed urban form which provides the wider context of the listed building. Therefore, although it would be intervisible, it would have a broadly neutral impact on the setting of the asset. Similarly, given the site context and degree of separation from the Grade II listed drinking fountain, which is on the opposite side of the street, the appeal schemes would have a neutral impact on the setting of the asset too. I therefore find the appeal schemes would preserve the settings of these listed buildings, the significance of which would therefore be preserved.
22. The Council has referred to a lack of public benefits to demonstrate the proposed street furniture is necessary. However, I have not been directed to any policy where this is a specific requirement. Nevertheless, I note the development would deliver various public benefits including providing accessible digital services to visitors of the area.
23. For the above reasons, I conclude for appeal A that the proposed development would preserve the character and appearance of the area, including the CA and the settings of the nearby listed buildings, the significance of which would therefore be preserved.

It therefore accords with Policies S.DH1, S.DH3, and D.DH10 of the THLP and Policies D3 and HC1 of the London Plan insofar as they support developments of high quality design which respond positively to their context, that preserve, or where appropriate, enhance designated heritage assets in a manner appropriate to their significance and seek to ensure that advertisements do not create visual clutter and are well-integrated in the public realm. It would also accord with Policies DP3, HE4 and HE6 of the Framework which seek well-designed places and protection of the historic environment.

24. Additionally, for appeal B, I conclude that the proposed advertisement would not have a harmful effect on the visual amenity of the area. I have taken into account Policies S.DH1, S.DH3, and D.DH10 of the THLP and D3 and HC1 of the London Plan, and the Framework which, amongst other things, promote good design which responds to local character, protection of the historic environment and that advertisements complement the character, appearance and visual amenity of the site and surrounding area without having an adverse effect on the setting or significance of heritage assets. Given that I have concluded that the proposal would not harm visual amenity, it does not conflict with these policies.

Highway pedestrian and public safety

25. Policy S.TR1 of the THLP states that developments are expected to prioritise the needs of pedestrians and cyclists and be integrated effectively alongside public transport, walking and cycling routes to maximise sustainable travel across the borough. Policy D.DH10 of the THLP also states that advertisements will be supported where they do not adversely affect public or highway safety or impede pedestrian access, including for those with visual impairment or impaired mobility. Policy T2 of the London Plan relates to the delivery of healthy streets including in the context of developments being permeable for pedestrians and cyclists.
26. The appeal site is located within a high footfall location with pedestrians walking to access local services and facilities along the street, including shops, bus stops, cycle docking stations and underground stations. Mile End Road also forms part of a cycleway and collectively forms a busy thoroughfare for motor vehicles, cycle and pedestrians. In the vicinity of the appeal site there are various examples of street furniture and trees on the footway. However, these are largely positioned towards the kerb edge with a relatively wide, clear footway provided between the building frontages.
27. The proposed street hub would be positioned perpendicular to the carriageway, approximately 0.5m away from the kerb edge of the cycle way and 6.3m away from the building line. Accordingly, there would be sufficient space between the buildings and the hub for pedestrians, wheelchair users, people with pushchairs and those with visual impairments to pass one another safely. Given the hub would be positioned broadly in line with nearby street furniture and a wide space would be retained between the adjacent buildings, it is unlikely that the development would cause any noticeable impact on pedestrian flow, desire lines or comfort on the footway either.
28. While I note the concerns raised by Transport for London (TfL) in relation to the amount of street furniture in the area, I have found above that the appeal scheme would not result in an unacceptable proliferation of street furniture or clutter in the street scene. Limited evidence has been submitted to demonstrate that this part of Mile End Road suffers from an adverse walking experience as a result of existing street furniture or that pedestrian flows are currently unsafe. However, even if the

proposed hub was considered to form a minor obstruction on the footway, ample space would remain either side of the structure and between other nearby street furniture to enable footway users to easily deviate and navigate around the proposed hub even in the context of busy footfalls. On this basis, the development would not inhibit or discourage pedestrian movement or constrain or obstruct the footway to such a degree that would increase the risk of pedestrian conflicts or pose a risk to highway safety.

29. In respect of Appeal B, the integral advertisements would be relatively large and internally illuminated. However, the appellant has suggested conditions could be imposed to restrict the intensity of the illumination of the digital displays, changeover time of the advertisements, prevent the use of moving images/animations and ensure that no content resembles traffic signs. They would also be set away from the kerb edge of the cycle way and further from the carriageway. As such, with these controls in place, they would not pose an unacceptable distraction for drivers or cyclists and thus would not have a harmful effect on highway or public safety.
30. Therefore, in respect of Appeal A, I conclude that the proposed development would not result in harm to highway or pedestrian safety. It therefore accords with Policy S.TR1 of the THLP and Policy T2 of the London Plan insofar as they expect development to deliver healthy streets which prioritise the needs of pedestrians and cyclists and for developments to be integrated effectively alongside walking and cycling routes to maximise sustainable travel.
31. In respect of Appeal B, I conclude that the proposed advertisement would not have a harmful effect on public safety. I have taken into account Policies D.DH10 and S.TR1 of the THLP and Policy T2 of the London Plan which prioritise healthy streets, pedestrian and cycle movements and sustainable travel and seek to ensure advertisements do not adversely affect public safety or impede pedestrian access and so are material in this case. However, given that I have concluded that the proposal would not harm public safety, it does not conflict with these policies either.

Other Matters

32. I note concerns raised by interested parties in relation to the effect of the appeals on the character of the area, which have been duly considered under the first main issue. However, the concerns relating to these appeals setting a precedent for further digital and illuminated signage have not influenced my decision, given every case must be considered on its own merits and I have found there would be no harm on the character or appearance of the area, the significance of any designated heritage asset or visual amenity arising from the appeal schemes.
33. Interested parties have also questioned the services provided by the hub. From the evidence before me the hub would provide a range of services and perform a public function. However, irrespective of this, I have not been directed to any policy requirement for the appellant to demonstrate a need for the proposal.

Conditions

34. The Council has suggested several conditions which I have considered against Policy DM6 of the Framework and Planning Practice Guidance. Where necessary, I have adjusted the wording in the interests of clarity and precision.

35. For Appeal A, in addition to the standard time-limit implementation condition, it is necessary to specify the approved plans in the interests of certainty. I have not imposed a condition restricting illumination on this permission given the advertisement panels are controlled under Appeal B. I have, however, imposed a condition requiring compliance with the Antisocial Behaviour Management Plan and Noise Management Plan to ensure the safe operation of the hub and deter crime and disorder.
36. For Appeal B, in addition to the five standard conditions set out in Schedule 2 of the 2007 Regulations, which are not repeated in the attached schedule, I have imposed conditions restricting the luminance of the advertisement, restricting the advertisements to static images and the frequency and nature of their changeover in the interests of amenity and public safety. In respect of luminance, based on the information provided I see no reason why the luminance of the advertisements should only be limited between dusk and dawn as suggested by the appellant. Therefore, in the interest of amenity and public safety, I have imposed a condition restricting the luminance of the advertisements to the level suggested by both parties, which would be applicable at all times.
37. I have also imposed conditions as suggested by the appellant to ensure the advertisements do not resemble traffic signs and to include a default freeze mechanism in the event of malfunction, for the same reasons. However, I have added the option to default to a black or blank screen in the event the advertisement display itself malfunctions.
38. The appellant has suggested the advertisement consent should remain valid for 10 years from the date of the consent. Section 14(7) of the Advert Regulations imposes a standard period of expiration period of 5 years unless an alternative period is specified in granting consent. The Council has not provided any reason why a 10 year period of expiration would be unacceptable and in light of my above conclusions where I have not identified any harm, I see no reason why a 10 year period would be unacceptable in this case.

Conclusion

39. For the reasons given above, I conclude that Appeal A and Appeal B should be allowed.

H Whitfield

INSPECTOR

SCHEDULE OF CONDITIONS

Appeal A

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following drawing nos and documents:
 - Site Location Plan – Ref. 26000287_PLN_LOC_1.1
 - Proposed BT Street Hub 3 Unit (dimensions)
 - Elevation Plan – Ref. 26000287_PLN_EL_3.1
 - Proposed Site Plan – Ref. 26000287_PLN_SI_2.1
- 3) The development hereby permitted shall be managed in accordance with the management measures detailed in the BT Street Hub Anti-Social Behaviour Management Plan Version 3 and BT Street Hub Noise Management Plan (V2.1 February 2025) for the lifetime of the development.

Appeal B

- 1) The intensity of the illumination of the advertisement permitted by this consent shall be no greater than 600 candelas per square metre (cd/m²).
- 2) The minimum display time for each advertisement shall be 10 seconds, and the advertisement display panels shall display static images only.
- 3) The interval between successive advertisements shall be no greater than 1 second and the complete display shall change without effect.
- 4) The advertisement digital display screens shall include a mechanism to default to a frozen advertisement or a blank or black screen in the event of any malfunction.
- 5) No content on the digital display screens shall resemble traffic signs, as defined in Section 64 of the Road Traffic Regulation Act 1984.

**** END OF SCHEDULE ****